QUANTUM BUSINESS SOLUTIONS, LLC

Data Processing Agreement

Master form for clients

DRAFT – Yellow bracketed items must be confirmed or completed. Have counsel review before signing or sending.

This Data Processing Agreement (the "**DPA**") is entered into as of [date] (the "**Effective Date**") between:

[CLIENT LEGAL NAME], a [state] [entity type] with offices at [street address, city, state ZIP] ("**Client**"); and

Quantum Business Solutions, LLC, a [South Dakota] limited liability company with offices at 1809 West Parkwood Circle, Sioux Falls, SD 57108 ("**Quantum**").

This DPA supplements the agreement under which Quantum provides services to Client, including the terms and conditions that accompany Quantum's accepted quote, proposal or statement of work [date or reference] (the "**Services Agreement**") and applies when Quantum processes Client Personal Data in providing the services.

1. Definitions

1.1 "**Applicable Data Protection Laws**" means all privacy and data protection laws that apply to the processing of Client Personal Data, including U.S. state privacy and data security laws (such as the California Consumer Privacy Act as amended, and the Indiana Consumer Data Privacy Act) and, where applicable, the EU and UK General Data Protection Regulations.

1.2 "**Client Personal Data**" means personal information relating to an identified or identifiable individual that Quantum processes on behalf of Client in connection with the services, such as CRM contacts, customer and prospect records, and employee contact details.

1.3 "**Client Data**" means Client Personal Data and all other data, documents and content of Client that Quantum accesses or receives to provide the services.

1.4 "**Security Incident**" means a confirmed breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, Client Personal Data in Quantum's or its subprocessors' possession or control. It does not include an incident in Client's own systems, or in platforms Client licenses directly (such as Client's HubSpot account), or one caused by Client or its users or credentials, except to the extent caused by Quantum's breach of this DPA.

1.5 "**Subprocessor**" means a third party engaged by Quantum that processes Client Personal Data. A platform that Client itself licenses and directs (for example Client's own HubSpot account) is not Quantum's Subprocessor.

1.6 The terms "controller", "processor", "business", "service provider", "process", "personal data" and "sell/share" have the meanings given in Applicable Data Protection Laws.

2. Roles and scope

2.1 As between the parties, Client is the controller (or business) and Quantum is the processor (or service provider) of Client Personal Data.

2.2 The subject matter, duration, nature, purpose, data types and data subjects are described in **Exhibit A**.

2.3 Where Quantum works inside systems that Client owns and licenses, Client is responsible for the configuration, permissions and security of those systems. Quantum will use only the access Client grants.

3. Quantum's obligations

3.1 **Instructions.** Quantum will process Client Personal Data only on Client's documented instructions, which include the Services Agreement and this DPA, and for the purpose of providing the services. Quantum will tell Client if it becomes aware that an instruction violates Applicable Data Protection Laws, but is not required to perform legal review of Client's instructions and may pause the affected processing until the instruction is corrected.

3.2 **Restrictions.** Quantum will not (a) sell or share Client Personal Data; (b) retain, use or disclose it for any purpose other than performing the services or as permitted by law, including for any commercial purpose of its own; (c) retain, use or disclose it outside the direct business relationship between the parties; or (d) combine it with personal data from other sources, except as the law allows for a service provider. Quantum certifies that it understands and will comply with these restrictions.

3.3 **Confidentiality.** Quantum will ensure that every person authorized to process Client Personal Data (employees and contractors) is bound by written confidentiality obligations and has completed security awareness training.

3.4 **Security.** Quantum will implement and maintain the technical and organizational measures described in **Exhibit B** and in Quantum's Information Security Overview, appropriate to the risk of the processing. Quantum may update its measures if the level of protection is not reduced.

3.5 **Assistance.** Taking into account the nature of the processing, Quantum will give Client reasonable assistance (a) in responding to requests from individuals to exercise their privacy rights, and promptly forward to Client any such request it receives directly, without responding except to acknowledge receipt; and (b) with security, breach notification, data protection assessments and consultations with regulators. Quantum may charge its then-current rates for assistance that requires more than a minimal amount of time.

3.6 **Location.** Quantum will process Client Personal Data in the United States unless Client agrees otherwise in writing. If a transfer outside the U.S. or from the EU/UK becomes necessary, the parties will put an appropriate transfer mechanism in place first.

3.7 **AI tools.** Quantum will not use Client Personal Data to train or improve any artificial intelligence model, and will use AI tools with Client Personal Data only under business or enterprise terms that prohibit the provider from doing so. [confirm before signing]

4. Subprocessors

4.1 Client gives general authorization for Quantum to use the Subprocessors listed in **Exhibit C**.

4.2 Quantum will give Client at least 30 days' written notice (email is sufficient) before adding or replacing a Subprocessor. Client may object on reasonable data protection grounds within that period. The parties will work in good faith to resolve the objection; if they cannot, Client may terminate the affected services and receive a pro-rata refund of prepaid fees for services not yet performed. Client remains responsible for fees for services already performed.

4.3 Quantum will bind each Subprocessor to written data protection terms no less protective than this DPA in all material respects and remains responsible for its Subprocessors' performance.

5. Security incidents

5.1 Quantum will notify Client without undue delay, and in any event within **72 hours**, after confirming a Security Incident, at Client's designated security contact in Exhibit A.

5.2 The notice will describe, to the extent known: the nature of the incident; the categories and approximate number of individuals and records affected; the likely consequences; and the measures taken or proposed. Quantum will supplement the notice as information becomes available.

5.3 Quantum will promptly take reasonable steps to contain and remediate the incident, cooperate with Client's investigation, and provide information Client reasonably needs to meet its legal notification duties. Client controls the content and timing of any notice to individuals or regulators about Client Personal Data, except where Quantum is required by law to notify.

5.4 Quantum's notification or response is not an admission of fault or liability.

6. Return and deletion

6.1 Within 30 days after the end of the services, or earlier on Client's written request, Quantum will return Client Data in a commonly used format and then delete it from Quantum's systems and instruct Subprocessors to do so.

6.2 Copies in routine backups will be deleted in the ordinary backup cycle, not later than 90 days after the end of the services, and remain protected under this DPA until deleted. Quantum may retain data it is legally required to keep, subject to this DPA, and may keep its own methodologies, templates and work product that contain no Client Personal Data.

6.3 On request, Quantum will confirm deletion in writing.

7. Audit and verification

7.1 On request, and no more than once every 12 months (unless a Security Incident occurs), Quantum will provide information reasonably necessary to show compliance with this DPA, including its Information Security Overview, a completed security questionnaire, and relevant third-party reports of its Subprocessors (such as SOC 2 reports) to the extent Quantum may share them.

7.2 If that information does not reasonably satisfy Client, Client may audit Quantum's relevant controls on 30 days' written notice, during business hours, subject to confidentiality, at Client's cost, and in a way that does not unreasonably disrupt Quantum's business or expose other clients' data. Client may conduct an audit at any time after a Security Incident affecting its data. Client will reimburse Quantum's reasonable time and costs for any audit beyond the first in a 12-month period. An audit will not include penetration testing or vulnerability scanning of Quantum's systems without Quantum's written consent, and will not give access to other clients' data or to Quantum's trade secrets beyond what is necessary.

8. Client's responsibilities

8.1 Client is responsible for the lawfulness of its instructions and of its collection and provision of Client Personal Data, including any required notices and consents.

8.2 Client will not provide Quantum with sensitive categories of data (for example payment card data, government ID numbers, health information or biometric data) unless the parties first agree in writing on additional safeguards.

8.3 Client will manage user access to its own systems and promptly revoke Quantum's access when no longer needed.

8.4 Client is responsible for the security of Client-owned and Client-licensed systems (including its HubSpot account), their configuration and user permissions, and the credentials Client or its users hold. Quantum is not responsible for incidents in those systems except to the extent caused by Quantum's breach of this DPA.

8.5 Client will give Quantum only the data and access reasonably needed for the services.

9. General

9.1 **Term.** This DPA starts on the Effective Date and continues for as long as Quantum processes Client Personal Data. Sections 5, 6 and 9 survive.

9.2 **Liability.** Each party's liability arising out of or related to this DPA is subject to, and counts toward, the limitations and exclusions of liability in the Services Agreement. If the Services Agreement contains none, or there is no Services Agreement, then (a) neither party is liable for indirect, incidental, special, consequential or punitive damages or lost profits, and (b) Quantum's total aggregate liability will not exceed the maximum limit of liability of the Quantum insurance policy that applies to the claim, and Client's total aggregate liability, other than for fees owed, will not exceed the same amount. This limit also applies to liability for a Security Incident caused by Quantum's breach of this DPA. See also Section 9.9.

9.3 **Order of precedence.** If there is a conflict, this DPA controls over the Services Agreement regarding the processing of Client Personal Data. Nothing in this DPA transfers ownership of either party's intellectual property; Quantum's methodologies, templates and tooling remain Quantum's, and Client Data remains Client's.

9.4 **Changes in law.** The parties will work in good faith to amend this DPA if required by a change in Applicable Data Protection Laws.

9.5 **Governing law and disputes.** The governing law and venue provisions of the Services Agreement apply. [If none: South Dakota law; courts in Minnehaha County, South Dakota.]

9.6 **Counterparts.** This DPA may be signed in counterparts and electronically.

9.7 **Insurance.** During the term Quantum will maintain technology professional liability (errors and omissions) insurance that includes cyber (network security and privacy liability and data breach expense) coverage [limits to match the certificate of insurance], and will provide a certificate of insurance on request. Insurance does not increase or limit either party's liability under Section 9.2.

9.8 **No third-party beneficiaries.** Only the parties may enforce this DPA.

9.9 **No indemnity.** Neither party gives an indemnity under this DPA. [If Client requires one, limit it to third-party claims resulting from a Security Incident caused by Quantum's breach of this DPA, and subject to Section 9.2.]

The parties have caused this DPA to be signed by their authorized representatives.

[CLIENT LEGAL NAME]	**QUANTUM BUSINESS SOLUTIONS, LLC**
By: _____	By: _____
Name: _____	Name: Shawn Peterson
Title: _____	Title: Chief Executive Officer
Date: _____	Date: _____

Exhibit A – Details of Processing

Item	Detail
Subject matter	Consulting, implementation and support services under the Services Agreement, including website and CRM (HubSpot) build, migration and optimization. [confirm]
Duration	The term of the Services Agreement plus the return/deletion period in Section 6.
Nature of processing	Access, storage, organization, transfer, configuration, transformation, migration, analysis and deletion of data within the services.
Purpose	To perform the services Client requests, including building, testing, supporting and optimizing Client's systems.
Categories of data subjects	Client's customers, prospects, website visitors, leads, vendors, and employees and business contacts.
Types of personal data	Names, business and personal contact details, job titles, employer, communication and engagement history, form submissions, marketing preferences, account and deal information, and web analytics identifiers. No sensitive data unless agreed under Section 8.2.
Other Client Data	Documents, process documentation, configuration details, and content provided for the engagement.
Access to Client systems	Named Quantum personnel working on the engagement only, each with their own account and MFA. Quantum will provide a current list on request and Client will tell Quantum when access should be removed.
Client security contact	[name, email, phone]
Quantum security contact	[security@thequantumleap.business]; Shawn Peterson, CEO

Exhibit B – Technical and Organizational Measures

Quantum maintains at least the following measures, described in more detail in its Information Security Overview:

- Multi-factor authentication on all business-critical systems; single sign-on where supported; unique named accounts; password manager and scheduled credential rotation.
- Role-based, least-privilege access by client; quarterly access reviews; prompt deprovisioning (no later than the next business day) at offboarding.
- Spam, phishing and malware filtering for email; SPF, DKIM and DMARC.
- Encryption in transit (TLS 1.2+) and at rest (via provider platforms); full-disk encryption and screen lock on devices used for client work.
- Automated backups of business-critical systems with restoration testing.
- Security awareness training for all employees and contractors at onboarding and at least annually.
- Written confidentiality and intellectual property agreements for all personnel.
- Documented incident response process and 72-hour client notification.
- Vendor review before a service is used with client data.
- Logical separation of client data; minimization and defined retention and deletion.

Exhibit C – Authorized Subprocessors

[Confirm which of these actually process Client Personal Data for this client, and delete the rest. Add any others (for example project management, e-signature, or AI providers).]

Subprocessor	Purpose	Location	Security assurance
Microsoft 365 (Microsoft Corp.)	Business email, calendar, file storage and collaboration	United States	SOC 2 Type II; ISO 27001
Supabase	Database and backend hosting for tools Quantum builds or uses [confirm]	United States [confirm region]	SOC 2 Type II
Vercel	Hosting of web applications and tooling [confirm]	United States	SOC 2 Type II
Zapier	Workflow automation between business systems [confirm]	United States	SOC 2 Type II
Anthropic (Claude)	AI-assisted analysis and drafting under business/commercial terms with no training on inputs [confirm plan]	United States	SOC 2 Type II [confirm]
HubSpot, Inc.	Client's own CRM and website platform, licensed by and contracted directly with Client. Listed for transparency only; not Quantum's Subprocessor.	As configured by Client	SOC 2 Type II (Trust Center)